

1 ENGROSSED SENATE
2 BILL NO. 1696

By: Coleman of the Senate

3 and

4 Caldwell (Trey) of the
House

5
6 [state government - Revolving Fund - deposit -
7 procedures - Program - requirements - eligibility
8 requirements - report - codification - effective
date -

emergency]

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11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 1. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 5013.4 of Title 74, unless there
14 is created a duplication in numbering, reads as follows:

15 There is hereby created in the State Treasury a revolving fund
16 for the Oklahoma Department of Commerce to be designated the
17 "Oklahoma Talent Attraction and Relocation Revolving Fund". The
18 fund shall be a continuing fund, not subject to fiscal year
19 limitations, and shall consist of all monies designated to the fund
20 by law. All monies accruing to the credit of the fund are hereby
21 appropriated and may be budgeted and expended by the Department for
22 the purpose of implementing and administering the Oklahoma Talent
23 Attraction and Relocation Program, including the awarding and
24 administration of grants, program evaluation, and related

1 administrative costs. Expenditures from the fund shall be made upon
2 warrants issued by the State Treasurer against claims filed as
3 prescribed by law with the Director of the Office of Management and
4 Enterprise Services for approval and payment.

5 SECTION 2. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 7020 of Title 74, unless there
7 is created a duplication in numbering, reads as follows:

8 A. There is hereby created within the Oklahoma Department of
9 Commerce the Oklahoma Talent Attraction and Relocation Program, to
10 be administered by the Department for the purpose of awarding grants
11 to support talent recruitment programs that motivate households to
12 relocate to Oklahoma from outside the state.

13 B. As used in this section:

14 1. "Eligible applicant" means:

- 15 a. a municipality with a population of fewer than one
16 hundred fifty thousand (150,000) persons according to
17 the most recent Federal Decennial Census,
- 18 b. a county with a population of fewer than five hundred
19 thousand (500,000) persons according to the most
20 recent Federal Decennial Census, or
- 21 c. a nonprofit corporation whose primary purpose includes
22 economic development, workforce development, or
23 community development;

1 2. "Household" means a group of one or more individuals who
2 live together within the same dwelling; and

3 3. "Household goals" means the total number of households that
4 a talent recruitment program seeks to successfully incentivize to
5 relocate or commit to relocate from outside this state to a
6 municipality in this state.

7 C. Subject to availability of funds, the Department may award
8 grants to eligible applicants for the administration of talent
9 recruitment programs and for costs associated with providing
10 incentives for households to relocate from outside this state to
11 establish residency within this state. No more than Two Hundred
12 Fifty Thousand Dollars (\$250,000.00) in grant funds may be awarded
13 to a single eligible applicant in a single fiscal year. No single
14 grant awarded pursuant to this subsection shall exceed Two Hundred
15 Fifty Thousand Dollars (\$250,000.00).

16 D. To the extent funds are available, the Department shall
17 disburse fifty percent (50%) of the total grant amount upon
18 execution of a grant contract and fifty percent (50%) of the total
19 grant amount upon verification that the recipient has successfully
20 met at least one-half (1/2) of the household goal stated in the
21 approved talent recruitment program plan. If the recipient fails to
22 meet at least one-half (1/2) of its stated household goal, the
23 remaining portion of the grant shall not be disbursed.

1 E. To be considered for a grant, an eligible applicant shall
2 submit to the Department a written talent recruitment program plan
3 that includes:

4 1. The total estimated cost of the program and the estimated
5 costs associated with program design, administration, marketing, and
6 relocation incentive initiatives;

7 2. The household goal and the estimated total grant amount per
8 household;

9 3. The estimated state and local tax impact;

10 4. The estimated total economic impact; and

11 5. Evidence that the proposed incentives do not duplicate
12 existing state or local relocation programs serving the same
13 households or geographic area.

14 F. The applicant shall demonstrate the ability to contribute at
15 least twenty percent (20%) of the total cost of the talent
16 recruitment program, which may include local investments and in-kind
17 donations. An applicant that has previously received a grant under
18 this section shall not be eligible for an additional grant unless
19 the applicant has met or exceeded the household goal stated in its
20 prior approved talent recruitment program plan.

21 G. If a recipient fails to meet its household goal by the end
22 of the program period, or if after notice and hearing the Department
23 determines grant funds were used for unauthorized purposes or
24 obtained through material misrepresentation of fact, the Department

1 may require repayment of all or part of the grant disbursed, plus
2 interest at the rate provided in Section 2375 of Title 68 of the
3 Oklahoma Statutes. The Oklahoma Department of Commerce Board shall
4 promulgate rules for repayment procedures pursuant to the
5 Administrative Procedures Act.

6 H. Each recipient of a grant under this section shall provide
7 semiannual reports to the Department that include:

- 8 1. The total number of household applications;
- 9 2. The total number of approved households;
- 10 3. The cost per approved household;
- 11 4. The annual incomes and occupations of approved households,
12 reported in aggregate form;
- 13 5. The economic impact of the talent recruitment program,
14 including state and local tax revenue and new consumer spending, to
15 the extent such information can be reasonably estimated;
- 16 6. Certification by a certified public accountant or other
17 independent third party acceptable to the Department verifying
18 household relocations through documentation including lease
19 agreements, utility service transfers, or employment records; and
- 20 7. If total grant funds exceed One Hundred Thousand Dollars
21 (\$100,000.00), a financial audit of program expenditures.

22 I. A household shall be eligible to receive incentives under a
23 talent recruitment program funded pursuant to this section if:
24

1 1. The household resides outside this state at the time the
2 household applies for incentives;

3 2. The household has an individual household income of at least
4 Fifty-five Thousand Dollars (\$55,000.00); and

5 3. The household submits an application to a grant recipient
6 for incentives under the talent recruitment program.

7 J. Beginning two (2) years after the effective date of this
8 act, and every two (2) years thereafter, the Department shall submit
9 an electronic report to the Governor, President Pro Tempore of the
10 Senate, and Speaker of the House of Representatives evaluating:

11 1. The total grants awarded versus verified household
12 relocations;

13 2. Actual versus projected state and local tax revenue
14 generated;

15 3. Cost per verified household; and

16 4. Net economic impact.

17 K. The Oklahoma Department of Commerce shall promulgate rules
18 as necessary to implement and administer the provisions of this
19 section pursuant to the Administrative Procedures Act.

20 SECTION 3. This act shall become effective July 1, 2026.

21 SECTION 4. It being immediately necessary for the preservation
22 of the public peace, health or safety, an emergency is hereby
23 declared to exist, by reason whereof this act shall take effect and
24 be in full force from and after its passage and approval.

1 Passed the Senate the 12th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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9 Presiding Officer of the House
10 of Representatives